



DECISION

Complaint No. : POS/4297/2024/HYD/844

Name and address of the complainant : Mr. Farooque Ahmed Shaikh,
R/o H.No. B-36, State Life Society,
Alamdar Chowk, Qasimabad, Hyderabad.

Name of the Agency Complained against : Regional Director, Sindh Building Control Authority, Hyderabad

Name & Designation of Investigating Officer : Syed Muhammad Sajjad Hyder, Regional Director,
Regional Office, Hyderabad.

Vetted by : **Muhammad Naseer Jamali, Advisor-N**

Subject : ALLEGED INACTION OF SINDH BUILDING CONTROL
AUTHORITY AGAINST THE BUILDER WHO FAILED TO
HAND OVER PHYSICAL POSSESSION OF SHOP TO THE
COMPLAINANT

Complaint

Mr. Farooque Ahmed Khan filed a complaint dated 13.09.2024 against M/S Shams Icon Project Qasimabad, Hyderabad wherein he alleged that he had booked a shop No.G-19, main Qasimabad, Hyderabad on 05.10.2020. He has paid total cost of the shop amounting to Rs.7,865,000/-. The builder was bound to handover physical possession of shop within two years of booking upto October 2022 but he failed to complete the project. Being aggrieved, he solicited intervention of this Institution.

Proceedings

2. The complaint was admitted for investigation u/s 10 (3) of the Establishment of the office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) subject to submission of mandatory documents and by condoning the delay.

3. This office issued a notice vide letter dated 20.11.2024 to the Regional Director, Sindh Building Control Authority, Hyderabad for report, followed by a reminder. In response, the Deputy Director, SBICA Taluka Qasimabad, Hyderabad informed vide letter dated 16.04.2025 that the matter was heard by the SBICA, attended by the builder and the complainant. The agency issued its decision as under:

- (i) That the allottee (complainant) was directed to pay the outstanding dues of development charges to the builder within six (06) months.
- (ii) That the builder was directed to complete the unit in all respect and hand over the physical possession of the shop to the complainant within six months;

If, any party did not agree, then he can approach the court of law being a private deal of civil nature between two parties.

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4. The copy of the agency's report was sent to the complainant for rejoinder vide letter dated 28.04.2025 who vide his reply dated 08.05.2025 did not agree with the decision of the Sindh Building Control Authority.

Findings

5. The investigation revealed that there is a deal between two private parties i.e Mr. Mukesh Kumar Sponsor of Project "Sham Icon", builder and the allottee. They did not agree to the terms as decided by the agency. They are at liberty to approach the competent court of law.

Decision

6 In view of the above and in exercise of powers vested in me under section 11 of Establishment of the office of the Ombudsman for the Province of Sindh Act, 1991 (amended upto date), the complaint is disposed of accordingly.

Given under my hand and seal of office



Sd /-

(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz. PAS
Ombudsman Sindh

Karachi, dated 27th February, 2026

